

24GDCV00138 24GDCV00138

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Case Number: 24GDCV00138 Hearing Date: July 10, 2026 Dept: A

MOTIONS TO COMPEL FURTHER RESPONSES

Los

Angeles Superior Court Case # 24GDCV00138

MP: Defendant

Toyota Motor Sales, U.S.A., Inc.

RP: Plaintiff

Mina Henin

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Mina Henin ("Plaintiff") alleges that on July 1, 2018, she leased a 2018 Toyota Tacoma, which was warranted by Toyota Motor Sales, U.S.A., Inc. ("Defendant"). Plaintiff alleges that the vehicle was delivered with serious defects and nonconformities to the warranty, including suspension, transmission, structural, engine, emission, and electrical system defects. (Compl., ¶10.) Plaintiff alleges she presented the vehicle on multiple occasions for repair, but Defendant was unable to conform the vehicle to applicable warranties after a reasonable number of attempts. (Id., ¶¶11-16.) Plaintiff revokes acceptance of the lease agreement. (Id., ¶17.)

The Complaint, filed January 24, 2024, alleges: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of Song-Beverly Act § 1793.2.

MOTIONS ON CALENDAR:

On March 25, 2026, Defendant filed four Motions to Compel Further Responses to: (1) Form Interrogatories ("FROG"); (2) Special Interrogatories ("SROG"); (3) Request for Production of Documents ("RPD"); and (4) Requests for Admissions ("RFA"). On June 26, 2026, Plaintiff filed oppositions. On July 2, 2026, Defendant filed a reply.

LEGAL STANDARD:

A motion to compel further interrogatory responses may be brought based on: (1) answers that are evasive or incomplete, (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response, or (3) unmerited or overly generalized objections. (C.C.P. § 2030.300(a).)

A motion to compel further RPD responses may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (C.C.P. § 2031.310(a).) A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (C.C.P. § 2031.310(b)(1).)

“Good cause” is shown by “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (Digital Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224.)

A motion to compel further RFA responses may be brought based on: (1) an evasive or incomplete answer; or (2) unmerited or overly generalized objections.) (C.C.P. § 2033.310(a).)

A motion to compel further must be accompanied by a meet and confer declaration. (C.C.P. §§ 2030.300(b)(1), 2031.310(b)(1); 2033.290(b)(1).) Additionally, the motion must be made within 45 days of service of the verified response or supplemental verified response, or on/before any specific late date to which the parties have agreed in writing. (C.C.P. §§ 2030.300(c), 2031.310(c), 2033.310(c).)

ANALYSIS:

Defendant moves to compel Plaintiff's further responses to the FROG, SROG, RPD, and RFA, arguing that Plaintiff provided objection-only responses.

On February 10, 2026, Defendant served on Plaintiff the discovery requests. On March 16, 2026, Plaintiff served objection-only responses. Defense counsel Maria Cvetanoska states that she met and conferred with Plaintiff's counsel regarding the responses, but Plaintiff ignored Defendant, resulting in Defendant filing these motions. (See Cvetanoska SROG Decl., ¶4.)

The motions are not accompanied by separate statements outlining the discovery requests at issue or Plaintiff's responses/objections. The motions do not include any exhibits such that the Court is not in receipt of what FROG, SROG, RPD, and RFA requests are at issue. Ms. Cvetanoska's declaration does not detail to what extent the parties met and conferred.

In opposition,

Plaintiff argues that Defendant did not meaningfully meet and confer because Defendant sent a single meet-and-confer email on March 18, 2026 before filing the motions on March 25, 2026. (See Sanders SROG Decl., ¶4, Ex. 1.) A review of defense counsel's email shows that Defendant took issue with Plaintiff's objection-only responses and requested full and complete production immediately.

"A single letter, followed by a response which refuses concessions, might in some instances be an adequate attempt at informal resolution, especially when a legitimate discovery objective is demonstrated. The time available before the motion filing deadline, and the extent to which the responding party was complicit in the lapse of available time, can also be relevant. An evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered" (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 432.) The Court may deny a motion to compel discovery for lack of a reasonable and good faith attempt to meet and confer. (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1436-1439; Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 434-435.)

To the extent Defendant's meet and confer efforts consisted of a single email sent seven days before filing a motion to compel, such efforts are insufficient. Defendant's email did not detail the full deficiencies of the responses/objections. It does not appear that Defendant took any further steps after sending the email to follow up via email or schedule a phone call or even to permit sufficient time for a busy lawyer or one on vacation to respond. As stated above, without any details or exhibits by Defendant, the Court is unaware of any further meet and confer efforts were conducted. It is unclear why, after Plaintiff served discovery responses/objections on March 16, 2026, Defendant only undertook sending one email on March 18, 2026 and filing the motions on March 25, 2026 when it had until April 30, 2026 (the 45-day deadline) to meet and confer and file the motions.

The Court will continue the hearing on the motions and order the parties to meet and confer in good faith.

Defendant seeks \$750

in sanctions per motion (= 1.5 hours for the motion + 1.5 anticipated hours to prepare for and appear at an “ex parte” hearing + 0.5 hours conducting meet and confer). (See Cvetanoska FROG Decl., ¶15.) An hourly rate was not provided, but defense counsel states that the \$750 amount reflects the nominal fees and costs incurred. (Id.) The Court will determine the applicability of sanctions on the continued hearing date.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court’s records.

ORDER

Defendant Toyota

Motor Sales, U.S.A., Inc.’s Motions to Compel Further Responses came on regularly for hearing on July 10, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

DEFENDANT’S MOTIONS TO COMPEL FURTHER RESPONSES ARE
CONTINUED TO AUGUST 14, 2026 AT 9:00 A.M.

THE PARTIES ARE ORDERED TO MEET AND CONFER IN GOOD FAITH AND ENGAGE IN A
COOPERATIVE PROCESS TO INFORMALLY RESOLVE THE MATTERS AT ISSUE. DEFENDANT IS ORDERED TO FILE
AND SERVE A SUPPLEMENTAL

BRIEF PER MOTION BY JULY 29, 2026: (1) DETAILING WHAT DISCOVERY ISSUES REMAIN
OUTSTANDING; (2) ATTACHING AS EXHIBITS THE DISCOVERY REQUESTS AND RESPONSES;
(3) PROVIDING SEPARATE STATEMENTS; AND (4) DETAILING THE MEET AND CONFER
EFFORTS. PLAINTIFF IS ORDERED TO FILE

AND SERVE SUPPLEMENTAL RESPONSIVE BRIEFS BY AUGUST 5, 2026. DEFENDANT MAY FILE SUPPLEMENTAL
REPLIES BY

AUGUST 10, 2026. IF THE PARTIES
INFORMALLY RESOLVE THEIR DISCOVERY ISSUES, THEN DEFENDANT SHOULD FILE A NOTICE
OF WITHDRAWAL OF THE MOTIONS BY JULY 29, 2026, AND TAKE THE MOTIONS

OFF-CALENDAR.

DEFENDANT TO GIVE
NOTICE.

IT IS SO ORDERED.